

The purpose of this document is to remind establishments of their obligations under EC regulation 1099/2009. Establishments are reminded that the information contained in this fact sheet is captured and published in the Manual of Importing Country Requirements (Micor). Please note that this fact sheet is a non-exhaustive summary of EC regulation 1099/2009. For comprehensive details of EU requirements, establishments are advised to refer directly to the relevant legislative text.

EU animal welfare requirements

[expand all]

What are the European Union (EU) Animal welfare requirements?

EU Council regulation (EC) No 1099/2009 on the protection of animals at the time of killing describes a number of animal welfare requirements for which all EU-listed establishments must comply with. It came into effect on 1 January 2013 and included structural, non structural as well as other requirements related to staff competence and training.

When will the European Union (EU) animal welfare requirements be implemented?

Non-structural requirements (January 2013)

The below listed non-structural requirements that should already be implemented in all EU-listed establishments since January 2013:

- At least one designated Animal Welfare officer is appointed for each slaughterhouse.
- The condition and state of health of animals in the lairages shall be regularly inspected by the animal welfare officer or a person having appropriate competence.
- The Animal Welfare officer must be under the direct authority of the business operator and report directly to him/her on Animal Welfare matters.
- The responsibilities of the Animal Welfare officer shall be set out in a standard operating procedure and effectively brought to the attention of the personnel concerned.
- The Animal Welfare officer must keep records of actions taken to improve Animal Welfare in the slaughterhouse; records must be kept for at least one year and made available for the competent authority upon request.
- The welfare of each consignment of animals shall be systemically assessed upon arrival by the animal welfare officer or a person reporting directly to the animal welfare officer in order to identify animals which have specific animal welfare needs and the corresponding measures are taken.
- Animals shall be unloaded as quickly as possible after arrival and subsequently slaughtered without undue delay.

- The condition and state of health of the animals in the lairages shall be regularly inspected by the animal welfare officer or a person having appropriate competency
- Each holding pen shall have a visible sign with the date and time of arrival of animals and the maximum number of animals to be kept in the pen.
- All personnel with responsibilities for handling, stunning and sticking must provide a written declaration stating that he/she committed no serious infringements against the Australian Animal Welfare laws in the past 3 years.
- All personnel with responsibilities for handling, stunning or sticking must hold a certificate of competence for such operations (until 8 December 2015, certificates of competency can be given to personnel with at least 3 years professional experience by the competent authority or its delegate)
- Persons responsible for stunning or other nominated staff must carry out regular checks on a sufficiently appropriate sample of animals to ensure that animals do not show any signs of consciousness or sensibility on the bleed rail. Immediate corrective action must be taken.
- Restraining and stunning equipment are maintained and checked in accordance with the manufacturer's recommendations by properly trained personnel.
- Back up stunning equipment is immediately available and is used in case of failure of the stunning equipment initially used.
- Animals are not placed in the restrainers until the person in charge of stunning and bleeding is ready to stun and bleed the animal as quickly as possible.
- Un-weaned, lactating, dairy animals and females given birth during transport shall be given priority over other types of animals. If this is not possible, arrangements shall be made to relieve them from suffering including:

Milking dairy animals at intervals of no more than 12 hours

Providing appropriate conditions for suckling and newborn animals

Structural requirements (December 2019)

Until 8 December 2019, additional requirements related to structural and equipment changes shall apply only to new establishments or to new layouts and/or equipments which have not entered into operations before 1 January 2013. Existing establishments must make arrangements to comply with the new requirements on or before 8 December 2019.

- Electrical stunning equipment shall be fitted with a device to display and record the details of the electrical key parameters for each animal stunned. The device is placed in a clearly visible location and shall give visible and audible warnings if the duration of exposure is below the required levels.
- Gas stunners shall be equipped to measure continuously, display and record the gas concentration at the time of exposure and to give a clearly audible warning if the gas levels fall below required concentrations. The device shall be placed in a visible location.
- Ramps and bridges used to unload animals are provided with lateral protection to ensure that animals cannot fall off.

- Lairage facilities allow pigs and sheep to walk side by side except in the lead up race.
- Cattle restraining boxes must restrict both the lateral and vertical movement of the animal's head.
- Where mechanical means of ventilation are required in the lairages and holding facilities, provisions shall be made for an alarm and emergency back up in the event of breakdown.
- The water supply system in pens shall be designed, constructed and maintained to allow all animals at all times to have access to clean water without being injured or limited in their movement.

Note: New establishments and any new layout, construction or equipment entering operation after 1 Jan 2013 must comply with these requirements at the time of entering operations.

Staff training and competency requirements (December 2015)

Until 8 December 2015, the competent authority or its delegate may provide a certificate of competency to persons demonstrating relevant professional experience of at least 3 years. After 8 December 2015, staff involved in the handling and/or slaughter of animals must hold a certificate of competency that indicate the species and type of equipment for which they are assessed as competent.

Are all EU listed establishments required to reference the industry animal welfare standard in their approved arrangement?

Yes, the approved arrangement of all EU-listed slaughter establishments must include procedures to ensure compliance with the National Animal Welfare Standards for Livestock Processing Establishments Preparing Meat for Human Consumption, Australian Meat Industry Council, second edition (2009).

Frequently asked questions

[expand all]

Q1: Does the word 'Business Operators' include the management of the company or the company itself as an entity?

In EU Regulation 1099/2009, 'Business operator' means any natural or legal person having under its control an undertaking carrying out the killing of animals. Therefore it refers to the management of the company.

Q2: Can cameras be used instead of the physical presence of the Animal Welfare officer or delegate to check the unloading of animals and monitor animal condition in the lairages?

No, the EU directive 1099/2009 requires that the Animal Welfare officer or its delegate to be physically present at the time of unloading to assess the welfare of animals and to ensure that animals with

specific welfare needs are properly managed and that appropriate action is immediately taken to address such need (i.e: humane destruction, treatment, segregation....etc.)

Q3: For establishments slaughtering animals for the EU market and other markets. Does the EU requirement apply only to EU eligible animals or to all animals slaughtered at the establishment for other markets?

Establishments wishing to apply the requirements of the EU directive only to EU eligible animals must have a segregation program that starts at the time of unloading of EU- eligible animals ensuring that unloading, handling, slaughtering operations and equipments as well as training requirements comply with the requirements in EU directive 1099/2009.

Q4: Do all consignments of animals destined for the EU market need to be assessed at the time of unloading?

Yes, consignments of animals destined to the EU market must be assessed on arrival including out of hours delivery. Animals must be assessed at the point of unloading for any animal welfare concerns by the animal welfare officer or his delegate and appropriate actions taken.

Related material

For more information and detailed legislative requirements, establishments are reminded to refer to Council Regulation (EC) No. 1099/2009 on the protection of animals at the time of killing.

Where can I find information about EC 1099/2009?

More information can be found on: [Micor](#)

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Source: <https://www.agriculture.gov.au/biosecurity-trade/export/controlled-goods/meat/elmer-3/eu-animal-welfare-requirements>